NATIONAL COMPANY LAW TRIBUNAL
CHANDIGARH BENCH (COURT – II)

Item No.105

COMP.APPL/217(CH)2025, COMP.APPL/219(CH)2025
In
CA (CAA) No. 28/Chd/Hry/2025
(1st Motion)

IN THE MATTER OF:
Okaya Power Pvt. Ltd. & Ors. ... Applicant Companies

Under Section: 230-232, CA 2013
Rule: 11 of NCLT Rules, 2016

Order delivered on 14.05.2026

CORAM:
SHRI. K. BISWAL, **SHRI. K.K SINGH,**
HON'BLE MEMBER (J) **HON'BLE MEMBER (T)**

PRESENT:-

For the Applicants in COMP.APPL/217(CH)2025, COMP.APPL/219(CH)2025	:	Mr. Atul V Sood, Mr. Aashish Gupta, Ms. Chandni Ghatak, Mr. Chaitanya Gupta, Mr. Rohan Sood, Advocates
For the Respondent in COMP.APPL/217(CH)2025, COMP.APPL/219(CH)2025	:	Mr. Anand Chhibbar, Senior Advocate along with Mr. Suman Kumar Jha and Ms. Swati Vashisht, Advocates

ORDER

COMP.APPL/217(CH)2025

This Application has been filed by Microtek International Private Limited under Rule 11 of the NCLT Rules, 2016 raising objections to the Scheme of Amalgamation proposed by the Petitioner Companies under Sections 230 to 232 of the Companies Act, 2013.

The matter was earlier heard on 30.10.2025 and certain facts have already been recorded in the said order. Today, we have heard Mr. Atul V. Sood, Ld. Counsel

appearing for the Applicant/Objector Company herein. He draws our attention to the e-mail dated 30.10.2025 issued on behalf of Petitioner Company No.1, reflecting the liability to the extent of Rs.5,45,15,788/- towards the Applicant Company.

Ld. Counsel for the Applicant further submits that while seeking dispensation of the various meetings in CA (CAA) NO. 28/CHD/HRY/2025, the Petitioner Company have wrongly reported the liabilities towards the Applicant Company at Rs.33,46,264/- only.

We have also heard Mr. Anand Chhibbar, Ld. Senior Counsel appearing for the Petitioner Company and the Respondent herein. We direct the Petitioner Company, who is Respondent herein to place on record a copy of the ledger account of the Applicant Company, as reflected in the books of accounts for the Financial Year 2024-25.

Ld. Counsel for the Applicant Company further submits that even being a creditor of **Petitioner Company No.1, namely Okaya Power Private Limited**, copies of the first motion and second motion applications have not been provided to the Applicant Company. Accordingly, we direct the Petitioner Company to provide the copy of the same forthwith to the Applicant Company.

For continuation of arguments, list the matter on **02.06.2026.**

COMP.APPL/219(CH)2025

List the matter on **02.06.2026.**

Sd/-
(K. BISWAL)
MEMBER (JUDICIAL)

Sd/-
(K. K. SINGH)
MEMBER (TECHNICAL)